

They were added awhile back. Here is the updated group list.

-----Original Message-----

From: Cook, Mary
Sent: Tuesday, November 06, 2001 10:48 AM
To: Heard, Marie
Subject: FW: PLEASE NOTE
Importance: High

Please add these people to the Master Netting Group

athena.alexander@cwt.com
david.mitchell@cwt.com
marissa.morelle@cwt.com

-----Original Message-----

From: "Athena Alexander" <Athena.Alexander@cwt.com>@ENRON
Sent: Tuesday, November 06, 2001 10:32 AM
To: Cook, Mary
Subject: PLEASE NOTE
Importance: High

Mary, going forward, could you please include me, David Mitchell and Marissa Morelle on all distributions that you make to Rick and Lech Kalemka? Thanks.

[athena.alexander@cwt.com, david.mitchell@cwt.com, marissa.morelle@cwt.com]

----- Forwarded by Athena Alexander/NY/CWT on 11/06/01 11:26 AM -----

Lech Kalemka
x6918 To: Athena
Office: NY Alexander/NY/CWT@CWT
cc:
11/06/01 10:43 Subject: Re: FORM CHANGES:
AM READ(Document link: Athena
Alexander)

Can you forward to David my forwards to you? Thanks.

Lech Kalemka
Cadwalader, Wickersham & Taft
100 Maiden Lane
New York, NY 10038
Tel.: (212) 504-6918
Fax: (212) 504-6666
E-mail: lech.kalemka@cwt.com

Athena
Alexander To: Lech Kalemka/NY/CWT@CWT
x6288 cc:
Office: NY Subject: Re: FORM CHANGES:
READ(Document link: Restore Lech

11/06/2001 Kalemka)

10:41 AM

OK, I will add us to the distribution list. However, please include David on anything you forward until he is also on the list. Thanks.

Lech Kalemka

x6918 To: Athena

Office: NY Alexander/NY/CWT@CWT, Marissa L.

Morelle/NY/CWT@CWT

11/06/01 cc:

10:39 AM Subject: FORM CHANGES: READ

I have been forwarding these messages at Rick's request. Going forward, perhaps either of you could contact Mary Cook to be added to the distribution list. Thanks.

----- Forwarded by Lech Kalemka/NY/CWT on 11/06/2001 10:36 AM -----

"Cook, Mary"

<Mary.Cook@EN To: "Antonoff, Rick"

RON.com> <rick.antonoff@cwt.com>,

Office: "Aronowitz, Alan"

<Alan.Aronowitz@ENRON.com>,

11/06/2001 "Clark, Morris"

10:09 AM <Morris.Richard.Clark@ENRON.com>

, "Cook, Mary"

<Mary.Cook@ENRON.com>, "Davis,

Angela"

<Angela.Davis@ENRON.com>, "Del

vecchio, Peter"

<Peter.Del.Vecchio@ENRON.com>,

"Douglas, Stephen H."

<Stephen.H.Douglas@ENRON.com>,

"Evans, Mark (London Legal)"

<mark.evans@enron.com>,

"Gaffney, Chris"

<Chris.Gaffney@ENRON.com>,

"Gray, Barbara N."

<Barbara.N.Gray@ENRON.com>,

"Hansen, Leslie"

<Leslie.Hansen@ENRON.com>,

"Heard, Marie"

<Marie.Heard@ENRON.com>,

"Hendry, Brent"

<Brent.Hendry@ENRON.com>,

"Hodge, Jeffrey T."

<Jeffrey.T.Hodge@ENRON.com>,

"Johnston, Greg"

<Greg.Johnston@ENRON.com>,

"Jones, Tana"

<Tana.Jones@ENRON.com>,

"Kalembka, Lech"
<lech.kalembka@cwt.com>,
"Keohane, Peter"
<Peter.Keohane@ENRON.com>,
"Koehler, Anne C."
<Anne.C.Koehler@ENRON.com>,
"Leite, Francisco Pinto"
<Francisco.Pinto.Leite@ENRON.com
>, "McCullough, Travis"
<Travis.McCullough@ENRON.com>,
"Mellencamp, Lisa"
<Lisa.Mellencamp@ENRON.com>,
"Murphy, Harlan"
<Harlan.Murphy@ENRON.com>,
"Murray, Julia"
<Julia.Murray@ENRON.com>,
"Nemec, Gerald"
<Gerald.Nemec@ENRON.com>,
"Portz, David"
<David.Portz@ENRON.com>,
"Rohauer, Tanya"
<Tanya.Rohauer@ENRON.com>,
"Sager, Elizabeth"
<Elizabeth.Sager@ENRON.com>,
"Saxena, Rahul"
<rahul.saxena@enron.com>,
"Sayre, Frank"
<Frank.Sayre@ENRON.com>, "Schuh,
Michael"
<michael.schuh@enron.com>,
"Shackleton, Sara"
<Sara.Shackleton@ENRON.com>,
"Simons, Paul"
<paul.simons@enron.com>, "St.
Clair, Carol"
<Carol.St.Clair@ENRON.com>, "Van
Hooser, Steve"
<Steve.Van.Hooser@ENRON.com>,
"Viverito, John"
<John.Viverito@ENRON.com>, "Von
Bock Und Polach, Marcus"
<marcus.von.bock.und.polach@enro
n.com>, "Williams, Jason R
(Credit)"
<Jason.R.Williams@ENRON.com>
cc:
Subject: FORM CHANGES: READ

1. Be sure to verify that the underlying contracts do not allow cherry picking under any default scenario. If it does, amend the express

language.

2. We have made 2 changes to the netting agreement forms on the basis of further review by Leslie Hansen of some provisions in our trading forms. The first change is in paragraph 2(a) to clarify the definition of Default. The second change is in paragraph 14(b) to delete the day limitation on claims of Force Majeure. We feel this should not be included in any physical contract that will be included in a master netting agreement, especially because of the current international situation and security concerns.

See attached reline version to read the changes.

<<MASTER NETTING & SECURITY AGMNT 10 H V1 RED.DOC>>

3. No changes have been made to the Collateral Annex.

4. Attached below are the new forms. Rather than continue with forms with and without the user notes, I put the user notes in a separate document. They are not at the back of the forms. Simpler.

<<Master Netting User Notes.doc>>

The attached forms are Master Netting & Security Agmnt 10 h a v1 (to use without collateral annex) and Master Netting & Security Agmnt 10 h v1 (to use with collateral annex).

<<Master Netting & Security Agmnt 10 h a v1.doc>> <<Master Netting & Security Agmnt 10 h v1.doc>>

Cordially,
Mary Cook
Enron North America Corp.
1400 Smith, 38th Floor, Legal
Houston, Texas 77002-7361
(713) 345-7732
(713) 646-3393 (fax)
mary.cook@enron.com

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(See attached file: MASTER NETTING & SECURITY AGMNT 10 H V1 RED.DOC)

(See attached file: Master Netting User Notes.doc)

(See attached file: Master Netting & Security Agmnt 10 h a v1.doc)

(See attached file: Master Netting & Security Agmnt 10 h v1.doc)

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- MASTER NETTING & SECURITY AGMNT 10 H V1 RED.DOC << File: MASTER NETTING & SECURITY AGMNT 10 H V1 RED.DOC >>
- Master Netting User Notes.doc << File: Master Netting User Notes.doc >>
- Master Netting & Security Agmnt 10 h a v1.doc << File: Master Netting & Security Agmnt 10 h a v1.doc >>
- Master Netting & Security Agmnt 10 h v1.doc << File: Master Netting & Security Agmnt 10 h v1.doc >>

----- Inline attachment follows -----

From: </O=ENRON/OU=NA/CN=RECIPIENTS/CN=MHEARD>

Date: Tuesday, October 30, 2001 5:59:24 GMT

Subject: